

(2) *Magna Carta and arbitrary commitment.* A second erroneous theory has still to be discussed. The Petition of Right, as already stated, treats Magna Carta as prohibiting the Crown from making arrests without a warrant showing the cause of detention; and the earlier commentators further interpreted it as making all acts of arbitrary imprisonment by the Crown absolutely illegal. Hallam, for example, declares that "It cannot be too frequently repeated that no power of arbitrary detention has ever been known to our constitution since the charter obtained at Runnymede."¹ Yet every King of England from John Lackland to Charles Stewart claimed and exercised the prerogative of summarily committing to gaol any man suspected of evil designs against Crown or Commonwealth. Even the famous protest of the judges of Queen Elizabeth, asserting the existence of legal limits to the royal prerogative of commitment, proves the lawfulness of the general practice to which it makes exceptions. Such rights inherent in the Crown were never seriously challenged until the struggle between Charles I. and his parliaments had fairly begun. Then only was it suggested that Magna Carta was intended to prohibit arbitrary commitments at the command of the Crown. Such was the argument deliberately put forth in 1627 during the proceedings known sometimes as Darnell's case and sometimes as the case of the Five Knights. Heath, the Attorney-General, easily repelled this contention: "the law hath ever allowed this latitude to the King, or his privy council, which are his representative body, in extraordinary cases to restrain the persons of such freemen as for reasons of state they find necessary for a time, without for this present expressing the causes thereof."² The parliamentary leaders, however, too grimly in earnest to be deterred by logic, were far from abandoning their error because Heath had exposed it. They embodied it, on the contrary, in the Petition of Right, which condemned the Crown's practice of imprisoning political offenders "without any cause showed" (other than *per speciale man-*

¹ *Const. Hist.*, I. 234.

² See *State Trials*, III. p. 1, and S. R. Gardiner, *History*, VI. 214.

datum regis), as contrary to the tenor of Magna Carta—an effective contention as a political expedient, but unsound in law.

CHAPTER FORTY.

NULLI vendemus, nulli negabimus, aut differemus, rectum aut justiciam.

To no one will we sell, to no one will we refuse or delay, right or justice.

This chapter, like the preceding, has had much read into it that would have astonished its framers: application of modern standards to ancient practice has resulted in complete misapprehension. The sums customarily received by John, as by his predecessors, at every stage of legal procedure, were not always the wages of deliberate injustice. Many such payments were not bribes to an unjust judge, but merely expedients for hastening the law's delays, or to ensure a fair hearing for a good plea, or to obtain some unusual but not unfair expedient, such as a peculiarly potent writ or the hearing of a case in the exchequer, which would ordinarily have been tried elsewhere. If the royal courts charged higher rates than the feudal courts, they supplied a better article. When Henry of Anjou threw open the doors of his court to all freemen who chose to pay for writs, he found a ready market. These writs differed widely in price. Some from an early date were issued whenever applied for (writs *de cursu*) and at a fixed sum: others were granted only as marks of favour or after a bargain had been struck. Specially quick or cogent procedure had to be specially paid for.

It would thus appear that the system of John was not open to the unqualified and violent condemnation which it usually receives. Hallam's language is too sweeping when he says: "A law which enacts that justice shall neither be sold, denied, nor delayed, stamps with infamy that government under which it had become necessary."¹ In

¹ *Middle Ages*, II. 451.

the twentieth century, as in the thirteenth, justice cannot be had for nothing; and the would-be litigant with a good claim but a slender purse will be well advised to acquiesce in a small loss rather than incur certainty of losing as much again in extra-judicial outlays, and risk of losing many times more in the judicial expenses of a protracted litigation. The lack of "free justice" is a reproach which the men of to-day cannot with good grace fling at the administration of John.

As the evils complained of are often exaggerated, so also are the reforms promised by this chapter of Magna Carta. John is usually held to have agreed to the abolition of payments of every sort for judicial writs and other fees of court. Justice, unlike other valuable commodities, was, it would appear, to be obtained for nothing—an ideal never yet attained in any civilized community.

Those who framed this chapter desired to secure a more reasonable measure of reform: abuses of the system were to be redressed.¹ Unfortunately, it was not easy to define abuses—to determine where legitimate payments stopped and illegitimate ones began. Prohibitive prices ought not to be charged for writs *de cursu*; but was the Crown to have no right to issue writs of grace on its own terms? Plaintiffs who had any special reason for haste frequently paid to have their suits heard quickly: was that an abuse?²

Whatever the intention may have been, the practical effect of the clause was *not* to secure the abolition of the

¹ Cf. Madox, I. 455: "By *nulli vendemus* were excluded the excessively high fines: by *nulli negabimus*, the stopping of suits or proceedings, and the denial of writs: by *nulli differemus*, such delays as were before wont to be occasioned by the counterfines of defendants (who sometimes would outbid the plaintiffs) or by the prince's will."

² Fines for this purpose were frequent under Henry II. and his sons. Madox, I. 447, cites many examples. Thus in 1166 Ralph Fitz Simon paid two marks "for speeding his right." The practice continued under Henry III. in spite of Magna Carta. Bracton's *Note-book* cites a hard case (No. 743): Henry III. was claiming prerogative wardship where it was illegal under c. 37 of Magna Carta (*q.v.*). The court might have delayed hearing the mesne lord's plea until the wardship was ended; but he paid five marks *pro festinando iudicio suo*. The fine was said to be given "willingly" (*sponte*). Did the use of this word make possible an evasion of c. 40 of the Charter?

sale of writs. The practice under Henry III. has been described by our highest authority :—" Apparently there were some writs which could be had for nothing ; for others a mark or a half-mark would be charged, while, at least during Henry's early years, there were others which were only to be had at high prices. We may find creditors promising the King a quarter or a third of the debts that they hope to recover. Some distinction seems to have been taken between necessities and luxuries. A royal writ was a necessary for one who was claiming freehold ; it was a luxury for the creditor exacting a debt, for the local courts were open to him and he could proceed there without writ. Elaborate glosses overlaid the King's promise that he would sell justice to none, for a line between the price of justice and those mere court fees, which are demanded even in our own day, is not easily drawn. That the poor should have their writs for nothing, was an accepted maxim." ¹

Probably the practice before and after 1215 showed few material differences. Some of the more glaring abuses were checked : that was all.² Parliament in subsequent reigns had frequently to petition against the sale of justice in alleged breach of Magna Carta.³ The King usually returned a politic answer, but never surrendered his right to exact large sums for writs of grace. Richard II., for example, replied : " Our lord the King does not intend to divest himself of so great an advantage, which has been continually in use in Chancery as well before as after the making of the said charter, in the time of all his noble progenitors who have been kings of England." ⁴

It is evident that Magna Carta did not put down the practice of charging heavy fees for writs. Yet this chapter,

¹ Pollock and Maitland, I. 174. Cf. *ibid.*, II. 204, and authorities cited.

² Madox, I. 455, says : " And this clause in the great Charters seems to have had its effect. For . . . the fines which were paid for writs and process of law were more moderate after the making of those great Charters than they used to be before."

³ Instances are collected by Sir T. D. Hardy in *Rot. de oblatis*, p. xxi. See also Stubbs, *Const. Hist.*, II. 636-7.

⁴ *Rot. Parl.*, III. 116, cited Stubbs, *Const. Hist.*, II. 637.

although so frequently misunderstood and exaggerated, is still of considerable importance. It marks, for one thing, a stage in the process by which the King's courts out-distanced all rivals. In certain provinces, at least, royal justice was left in undisputed possession. In these the grievance was not that there was too much royal justice, but that it was sometimes delayed or denied. Here, then, even in the moment of John's bitter humiliation we find evidence of the triumph of the policy inaugurated by his father.

It is not to such considerations, however, that this chapter owes the prominence usually given to it in legal treatises; but rather to the fact that it has been interpreted as a universal guarantee of impartial justice to high and low; and because, when so interpreted, it has become in the hands of patriots in many ages a powerful weapon in the cause of constitutional freedom. Viewing it in this light, Coke throws aside his crabbed learning and concludes with what is rather a rhapsody than a lawyer's commentary: "as the gold-finer will not out of the dust, threads, or shreds of gold, let pass the least crumb, in respect of the excellency of the metal; so ought not the learned reader to pass any syllable of this law, in respect of the excellency of the matter."¹

CHAPTER FORTY-ONE.

OMNES mercatores habeant saluum et securum exire de Anglia, et venire in Angliam, et morari et ire per Angliam, tam per terram quam per aquam, ad emendum et vendendum, sine omnibus malis toltis, per antiquas et rectas consuetudines, preterquam in tempore gwerre, et si sint de terra contra nos gwerrina; et si tales inueniantur in terra nostra in principio gwerre, attachientur sine dampno corporum et rerum, donec sciatur a nobis vel capitali iusticiario nostro quomodo mercatores terre nostre tracten-

¹ *Second Institute*, 56.

tur, qui tunc invenientur in terra contra nos gwerrina; et si nostri salvi sint ibi, alii salvi sint in terra nostra.

All merchants shall have safe and secure exit from England, and entry to England, with the right to tarry there and to move about as well by land as by water, for buying and selling by the ancient and right customs, quit from all evil tolls, except (in time of war) such merchants as are of the land at war with us. And if such are found in our land at the beginning of the war, they shall be detained, without injury to their bodies or goods, until information be received by us, or by our chief justiciar, how the merchants of our land found in the land at war with us are treated; and if our men are safe there, the others shall be safe in our land.

Merchants and merchandise had suffered from John's greed. The control of commerce was reserved for the King's personal supervision: no binding rule of law or traditional usage trammelled him in his dealings with foreign merchants, who were dependent on royal favour, not on the law of the land, for the privilege of trading and even for personal safety. No alien could enter England or leave it, nor take up his abode in any town, nor move from place to place, nor buy and sell, without paying heavy tolls to the King. This royal prerogative proved a profitable one.¹

John increased the frequency and amount of such exactions, to the detriment alike of foreign traders and their customers. Magna Carta, therefore, sought to restrain this branch of prerogative, forbidding him to exact excessive tolls for removing obstacles of his own creating. This benefited merchants by securing to them certain privileges, which may perhaps be analysed into three: safe-conduct,

¹ So far all authorities are agreed, though a difference of opinion exists as to the source of these prerogatives. Thus (a) Stephen Dowell, *History of Taxation and Taxes in England*, I. 75, considers that the duties on imports and exports were in their origin of the nature of voluntary dues paid by foreign merchants in return for freedom of trade and royal protection; (b) Hubert Hall, *Customs Revenue of England*, I. 58-62, justly reckons this prerogative as merely one aspect of purveyance, that is, of the King's right to take what he needed for himself and household. Under an autocrat, however, facts count for more than theories. The prerogative was measured by brute force: Kings took what they could with no jealous regard for the exact letter of the law, and left future ages to invent theories to justify or explain their conduct.